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EDS proposes drafting changes to fix new resource management laws

22 February 2026

The Environmental Defence Society (EDS) has lodged its final submission on the Planning Bill and Natural Environment Bill with Parliament's Environment Select Committee, including detailed tracked-change drafting to address significant weaknesses in the legislation.

The submission builds on constructive feedback received on EDS's earlier draft and introduces further analysis on scope, water conservation orders, marine provisions, and the interaction of the Bills with legislation covering the Waitākere Ranges and Hauraki Gulf.

"This is the most significant and complex environmental law reform in decades. There is no more appetite for constant legislative upheaval, so the framework must be robust, durable, and environmentally credible from the outset," says EDS Reform Director Dr Greg Severinsen.

"To help the Committee, we've provided practical, clause-level drafting changes. While the current framework has serious flaws, targeted amendments could stabilise the two-Act structure and address the most pressing environmental risks.

“EDS has identified four major concerns with the Bills.

Regulatory relief risks undermining environmental protection

“The proposed regulatory relief regime could force financially stretched councils to compensate private landowners for public interest environmental protections. Without major changes, it risks creating a chilling effect on indigenous biodiversity and landscape safeguards.

Environmental limits lack clarity and strength

“The limits framework has promise, but exemptions, trade-offs between human and environmental health with economic aspirations, and reluctance to allow councils to regulate mean it currently operates more like a balancing exercise than a true environmental bottom line.

Public participation is being stripped away

“Removing meaningful opportunities for expert and community input undermines both democratic legitimacy and decision quality. Strong environmental law relies on transparent processes and independent scrutiny.

Narrowed planning scope could weaken outcomes

“The Bills significantly narrow the scope of planning. This risks creating a system that manages development down to weak limits – rather than improving environmental conditions or preventing decline.

“EDS has asked to appear before the Select Committee where it will outline its deep concerns and present its recommendations for practical solutions.

“The decisions made now will shape Aotearoa New Zealand’s environmental management for decades, we must get it right,” concluded Dr Severinsen.

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